



POLICE DEPARTMENT

October 27, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202103467 (Incident Date: May 3, 2022) regarding Police Officer Mario Valencia, Tax No. 937668 (DADS No. 2022-27112)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202103467, pertaining to Police Officer Mario Valencia. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Valencia would be detrimental to the Police Department's disciplinary process.

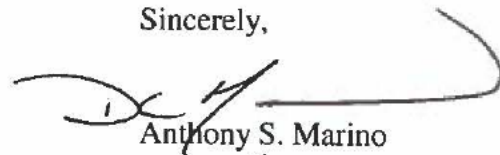
The Police Commissioner noted that the allegation in this matter stemmed from an answer that Police Officer Valencia provided when he was asked about an incident involving a civilian trying to enter a subway station in Brooklyn without paying. The civilian was escorted out of the train station, and while doing so, the Officer's body-worn camera became dislodged and shifted, thereby obstructing a clear view of the scene. During the interaction, the phrase "Don't fucking touch me, bro" was said. The Officer was questioned and testified that he believed it was the civilian who shouted the phrase. As it remains unclear who actually made the statement in question, there is clearly insufficient evidence to establish that Police Officer Valencia's statement was intentionally false. When asked who made the statement, the Officer merely stated that he believed it was the civilian who made it. The investigation showed that before the statement was made, the civilian was on video being guided out of the station. As a result, based on the totality of the circumstances, it is clear that Police Officer Valencia did not intentionally make a false official statement. The Police Commissioner further noted that Police Officer Valencia has no other substantiated CCRB allegation in his career, and had not received any formal discipline from the Department prior to the present allegation.

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Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and take no disciplinary action against Police Officer Valencia.

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a long horizontal flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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ARVA RICE
INTERIM CHAIR

October 31, 2023

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Police Officer Mario Valencia
Disciplinary Case No.: 2022-27112

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 27, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and take no disciplinary action against Police Officer Valencia. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you disagree with the findings that Police Officer Valencia made a misleading statement during his official interview and that “when asked who made the statement, the Officer merely stated that he believed it was the civilian who made it” and that “Police Officer Valencia did not intentionally make a false official statement.” CCRB disagrees with this determination.

During his CCRB interview on May 03, 2022, Police Officer Valencia stated that he did not recall if he used any profanity during the incident. PO Valencia did not recall if he said, “Don’t fucking touch me.” When presented with his BWC footage, PO Valencia testified that he believed it was § 87(2)(b) who said those words. PO Valencia also testified that his BWC dropped to the ground during the incident because it is generally not very secure.

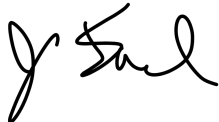
However, PO Valencia’s BWC footage clearly captures PO Valencia yelling ‘Don’t fucking touch me’. (202103467_20210628_1513_DMI.MP4). PO Valencia’s BWC footage showed that while the officers were pushing § 87(2)(b) toward the emergency exit, PO Valencia’s BWC fell on the ground. At 01:10 minutes, PO Valencia repeatedly yelled, “Don’t fucking touch me. Do not

touch me,” and said that § 87(2)(b) was being disrespectful making it abundantly clear that it was him and not § 87(2)(b) speaking. § 87(2)(b) voice is then also heard speaking in the background. At 02:00 minutes, PO Valencia picked up his BWC and re-attached it to his chest. At 02:53 minutes, outside the subway station on top of the stairs, PO Valencia approached § 87(2)(b) and repeatedly yelled, “Do not touch me.” Though the BWC did not visually capture PO Valencia for the duration of one minute when he used profanity, it captured his voice. When presented with this BWC footage, PO Valencia continued to state that it was § 87(2)(b) who made the statement. After being shown the footage twice, Investigator Pavlova asked PO Valencia “Ok, so just for the record, so that words that you heard, “Don’t fucking touch me”, you believe that § 87(2)(b) said those words?” PO Valencia responded, “Those are his words, yes.”

Administrative Guide Procedure 304-10 states that a misleading statement is a statement that is intended to misdirect the fact finder, and materially alter the narrative by intentionally omitting a material fact or making repeated claims of “I do not remember” when a reasonable person under similar circumstances would recall, or have been aware of, such material facts. A material fact is a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand, including any foreseeable consequences, or establishment of the elements of some proscribed conduct. PO Valencia had the opportunity to watch the BWC footage twice during his CCRB interview and stated that he could clearly hear the statement being made but still denied making the statement. PO Valencia’s voice was clear throughout the video and he and any reasonable person watching the BWC footage would have been able to differentiate his voice from § 87(2)(b). When PO Valencia stated that it was § 87(2)(b) who said those words, he purposely misdirected the investigation by materially altering the narrative. This fact was material to the investigation and was thus a misleading official statement as per Administrative Guide Procedure 304-10.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Police Officer Valencia in this matter.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 2, 2023

Re: CCRB Case No. 202103467 (Incident Date: May 3, 2022) regarding Police Officer Mario Valencia, Tax No. 937668 (DADS No. 2022-27112)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated October 31, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Mario Valencia, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Valencia, for the reasons expressed in my October 27, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Police Officer Mario Valencia receive no disciplinary action in connection with this matter.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office